

		Lastly, Plaintiff brings a claim for unfair competition, pursuant to Business & Professions Code section 17200, which prohibits “any unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising....” (Bus. & Prof. Code, § 17200.) “Where a UCL Claim is derivative of another claim that fails as a matter of law, the UCL claim must similarly fail.” (Nein v. HostPro, Inc. (2009) 174 Cal.App.4th 833, 841.) Defendants demur to the Third Cause of Action, on the basis it is derivative of all remaining claims. (Demurrer: 7:2-4.) In response, Plaintiff concedes the derivative nature of this claim, but nonetheless asserts that “the first, second, and fourth causes of action are not shown to be barred as a matter of law on the face of this Complaint....” (Opposition: 6:3-7.) As the Court has sustained the demurrer to all remaining claims, the demurrer is likewise sustained, as to this derivative claim. While Plaintiff has not specified how he will amend to state a claim and, in particular, has not identified a legal basis for avoiding the statute of limitations, leave to amend is GRANTED, as this is his first attempt at pleading. (See Tarrar Enterprises, Inc. v. Associated Indemnity Corp. (2022) 83 Cal.App.5th 685, 688; See also Amy’s Kitchen, Inc. v. Fireman’s Fund Ins. Co. (2022) 83 Cal.App.5th 1062, 1073.)
104	Craig v. SageKitchen, LLC, 2025-01526209	MOTION TO COMPEL ARBITRATION – GRANTED Plaintiff Jeremy Craig sued his former employer, Defendant Sagekitchen, for wrongful termination and disability discrimination, among other causes of action related to his employment. Defendant has moved to compel arbitration based on an arbitration agreement signed by Plaintiff. Plaintiff agrees he signed the arbitration agreement, and that the causes of action alleged in his complaint would be covered by the agreement if it is enforceable. Plaintiff also agrees he refused to agree to submit his claims to arbitration.

		Plaintiff contends the arbitration agreement is both procedurally and substantively unconscionable. Plaintiff bears the burden of proof on the issue of unconscionability. (Tiri v. Lucky Chances, Inc. (2014) 226 Cal.App.4th 231, 244.) Plaintiff fails to establish procedural unconscionability, Plaintiff's declaration in opposition to the motion to compel arbitration does not establish he was required to sign the agreement in order to obtain employment. (Compare Craig Decl., ¶¶3-10 with Herscovici Decl., ¶¶5-6.) Further, the Court does not find that the terms of the arbitration agreement are so one-sided as to shock the conscience, and therefore does not find substantive unconscionability. Although the agreement provides that the arbitration "will be conducted in accordance with the rules applicable to employment disputes of [JAMS]," it also allows the parties to "mutually agree to other procedures," and the JAMS rules themselves do not prohibit the discovery Plaintiff requests. (Having made the argument before this Court that the arbitrator has the authority to expand discovery and provide for nonparty discovery, the Court anticipates that Defendant will not take a contrary position before the arbitrator.) The Court rejects Plaintiff's argument that the EFAA makes the arbitration agreement invalid because it might apply to a claim of sexual harassment, when there are no causes of action of sexual harassment or discrimination in this case. The motion to compel arbitration is GRANTED. The matter is STAYED. The Court sets an ADR review hearing on September 20, 2027, at 1:30 p.m. in Department N14. Counsel for Defendant is ORDERED to provide notice to the Court within 15 days of a final arbitration award.
105	Elias v. Jensen, 2020-01139897	MOTION FOR RECONSIDERATION – CONTINUED On July 28, 2026, Defendants filed a Motion for Order Requiring Plaintiff to Furnish Security Pursuant to Vexatious Litigant Statute. Pursuant to CCP §391.6, the